

Tamil Nadu Home Guard Rules, 1963

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State of Tamilnadu- Act

Tamil Nadu Home Guard Rules, 1963

TAMILNADU

India

Tamil Nadu Home Guard Rules, 1963

Rule TAMIL-NADU-HOME-GUARD-RULES-1963 of 1963

Published on 1 January 1963

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Tamil Nadu Home Guard Rules, 1963

In exercise of the powers conferred by section 15 of the Tamil Nadu Home Guards Act, 1963 (Tamil Nadu Act 3 of 1963), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These rules may be called the Tamil Nadu Home Guard Rules, 1963.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(i)

"Act" means the Tamil Nadu Home Guard Act, 1963 (Tamil Nadu Act 3 of 1963).

(ii)

"Form" means a Form appended to these rules.

(iii)

"Home Guard" means the Home Guard constituted under section

(iv)

"Section" means a section of the Act.

3.

Recruitment and appointment of Home Guard.

- (i) No person shall be appointed as a member of the Home Guard, unless he-

(a)

has completed the age of 20 years and has not completed the age of 45 years;

(b)

is of good character and is physically fit;

(c)

is a resident of the Tamil Nadu State; and

(d)

is in the opinion of the Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the Superintendent of Police in a district, suitable for appointment as a member of the Home Guard:

Provided that the age limit specified in clause (a) may, for reasons to be recorded in writing, be relaxed in individual cases by the Inspector General of Police to facilitate recruitment of candidates who are otherwise qualified.

(ii)

Every person desiring to be appointed as a member of the Home Guard shall make an application in Form 'A' to the Commissioner of Police in the city of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or to the Superintendent of Police in a District.

4.

Pledge.

- Every person shall, before appointment as a member of the Home Guard, sign a pledge of service in Form 'B' before the Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the Superintendent of Police in a District or an officer authorized by them in this behalf for the purpose.

5.

Certificate.

- Every person appointed as member of the Home Guard shall be given a certificate of appointment in Form 'C'.

6.

Term of appointment.

- Every person appointed as a member of Home Guard shall continue as such for a period of three years.

6A.

[Re-appointment and extension of appointment.

[Inserted by G.O.1325, Home, dated 26th April, 1966.]

- Every person appointed as a member of the Home Guard shall be eligible for re-appointment and the period of appointment maybe extended:]

[Provided that the period of re-appointment or the period of extension of appointment shall be not more than three years on each occasion:]

[Inserted by G.O. 2125, Home, dated 3rd August, 1967.]

[Provided further that in case of re-appointment or the extension of appointment, a member of Home Guard may continue as such until he attains the age of 58 years.]

[Inserted by G.O. 1305, Home, dated 25th April, 1980.]

7.

Conditions subject to which power of discharge may be exercised.

- A member of the Home Guard may be discharged under section 5 if the Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, or the Superintendent of Police in a District is satisfied that the said member is physically unfit to continue as such or the continuance of any member in the Home Guard is detrimental to the good order, welfare or discipline of the Home Guard or is prejudicial to the security of India or any part thereof:

[Provided that in the case of Assistant Commandant General, the power to discharge him from service shall be vested with the Commandant-General.]

[Inserted by G.O. 2474, Home dated 25th November, 1983.]

8.

Resignation.

- A member of the Home Guard may, by application in writing addressed to the Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the Superintendent of Police in a district, resign his office:

Provided that such resignation shall not take effect until it is accepted by the Commissioner of Police or the Superintendent of Police, as the case may be.

9.

[Organization.]

[Inserted by G. O. 467, Home, dated 18th February, 1966.]

(1)

The Inspector General of Police shall be the ex-Officio Commandant General of the Home Guard. The Director of Civil Defence, Tamil Nadu shall be the ex-officio Deputy Commandant General.

(2)

[The Home Guard constituted for the City of [Chennai]

[Inserted by G. O. 871, Home, dated 24th November 1972.]

or for a district shall consist of:]

(i)

[One or more Assistant Commandant Generals shall be appointed from among the Area Commanders on the basis of performance in the organization, merit and devotion, by the Commandant General, on the recommendation of the Deputy commandant General. They shall be assigned the rank of Deputy Commissioner of Police in the City of [Chennai]

[Inserted by G. O. 2474, Home, dated 25th November 1983.]

and the Superintendent of Police in the District. They shall assist ex-officio Commandant General and the ex-officio Deputy Commandant General. Their functions shall be only of advisory nature to the ex-officio Commandant General, ex-officio Deputy Commandant General. The region-wise jurisdiction of the Assistant Commandant Generals shall confine to [Chennai]

[Inserted by G. O. 2474, Home, dated 25th November 1983.]

city and to the Districts in Police Ranges in mofussil.]

[(i-A) An Area Commander who shall be selected by the Commissioner of Police in the City of [Chennai]

[Inserted by G. O. No. 467 Home, dated 18th February 1966.]

or by the Superintendent of Police in a district and assigned the rank of Additional Deputy Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the rank of Additional Superintendent of Police in the district.]

[(i-B) A Deputy Area Commander (for Women's Wing only) who shall be selected by the Commissioner of Police in the City of [Chennai]

[Inserted by G. O. No. 428 Home, dated 28th April 2000.]

or by the Superintendent of Police in the District and assigned the rank of Additional Superintendent of Police of a district in the City [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the rank of the Deputy Superintendent of Police in the District.]

[(i-C) Three Deputy Area Commanders in the city of [Chennai]

[Inserted by G. O. No. 709 Home, dated 24th June 1994.]

selected by the Commissioner of Police and assigned the rank of Additional Superintendent of Police of a district.]

(ii)

[An Adjutant in the City of [Chennai]

[Inserted by G. O. No. 2121 Home, dated 3rd August 1967.]

and in each of the Mofusil District who shall be a Police Officer not lower in rank than a Deputy Superintendent of Police to assist the Area Commander.]

(iii)

[Divisional Commanders for each group consisting of not more than five companies and not less than three companies in such areas as may be fixed by the Commandant General, from time to time. Adjutants of the rank of Company Commanders to assist the Divisional commanders, Company Commanders, Platoon Commanders, Assistant Platoon Commanders, Section Leaders, Assistant Section Leaders and other member of the Home Guard.]

[Inserted by G. O. No. 940 Home, dated 30th March 1964.]

(3)

(i)

The Home Guard shall be organized in section, each consisting of nine members. Three sections shall form a Platoon and three Platoons shall form a company. Besides the members of the Home Guard in the Sections, there shall be a separate Home Guard Messenger for each Platoon and also for each company. Provided that one of the companies of which the Divisional Commander will be in charge shall have no Home Guard Messenger.

(ii)

The Home Guard shall be attached to such Police Stations as may be specified by the Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the Superintendent of Police in a district.

(4)

A separate Women's Wing of the Home Guard may be constituted under the administrative control of the Area Commander in such areas as the Government may decide.

10.

Training.

(1)

The members of the Home Guard shall, on enrollment, be required to undergo basic course of training for a period of a month and a half as follows:-

(a)

Daily training of not more than an hour for the first fifteen days (exclusive of holidays). - Physical training and foot drill without arms and lectures on Home Guard Organization and duties of Home Guards and Police:

[Provided that the Home Guards who have already undergone training in National Cadet Corps or Air Wing and the like may be required to undergo training in Fire fighting only for fifteen days. Thereafter, they will attend regular parades.]

[Substituted by G. O. No. 1196, Home, dated 23rd March 1970.]

(b)

On completion of the fifteen days training, members of the Home Guard shall be required to come on alternate days for training of about an hour and half for fifteen days in First Aid, Fire-fighting and Rescue Work and musketry.

(c)

Thereafter, members of the Home Guard shall be called out at least once a month either for training or for practical work.

(2)

On completion of the basis course of training prescribed in sub-rule (1), an advanced course for a period of about a month and half shall be conducted for members of the Home Guard above the rank of Assistant Section Leaders. The advanced course shall comprise of lectures and practical work on the following subjects:-

(1)

Organization and Man-Management;

(2)

Civil Defence Measures;

(3)

Emergency Relief;

(4)

Map reading, field craft and automatic weapons.

(3)

The members of the Home Guard may be called out for training or for duty by any Police Officer not below the rank of a Station House Officer under the Instructions of the Commissioner of Police in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or the Superintendent of Police in a district.

10A.

[Civilian Rifle Training Scheme.

[Inserted by G. O. No. 309, Home, dated 29th January 1971.]

- (i) The Civilian Rifle Training Scheme to ensure civilian defence in times of emergency shall be popularized.

(ii)

The work of popularizing the Civilian Rifle Training Scheme shall be entrusted to Area Commanders of Home Guards.

(iii)

The Area Commanders shall contact voluntary organizations such as Bharat Scouts, Guild of Service, etc., in popularizing the Civilian Rifle Training Scheme.]

11.

[Functions and duties.

[Inserted by G. O. No. 2761, Home, dated 30th September 1986.]

- The functions and duties of members of the Home Guard shall be-

(i)

Manning traffic points,

(ii)

Service of beats and night patrols,

(iii)

Service of summons,

(iv)

Collection of information and intelligence,

(v)

Crowd control,

(vi)

To help the Police in the maintenance of internal security,

(vii)

To promote communal harmony by rendering assistance to the administration in protecting weaker sections of the society,

(viii)

To participate in the socio-economic and welfare activities such as adult education, health and hygiene, development schemes and such other tasks as are deemed useful,

(ix)

To allay panic, organize rescue work, provide relief measures during any kind of emergency such as air raid, cyclone, floods, epidemic, earthquake, etc., organize fire-fighting, and

(x)

To have functional units to provide essential services such as motor transport, pioneer and engineer groups, fire brigades, nursing and first-aid, operation of water and power supply installations, etc.]

12.

[Discipline.

[Inserted by G. O. No. 2993, Home, dated 6th September 1966.]

(1)

A member of the Home Guard shall perform such duties and functions as may be assigned to him and shall obey every order of his superior officers.

(2)

If a contingent of Home Guard is acting in conjunction with the police, they shall be subject to the control of the senior police officer present.

(3)

The Commissioner of Police in the City of [Chennai] or the Superintendent of Police in a district may, for good and sufficient reason, impose on any member of the Home Guard any of the following penalties, namely:-

(a)

Suspension; and

(b)

Removal.

(4)

All cases of indiscipline shall be brought before an Orderly Room consisting of the Adjutant, a Divisional Commander and a Company Commander, charges framed and the Home Guard charged shall be given an opportunity to explain the charge against him. The findings of the orderly room and its recommendation shall be forwarded to the Area Commander who shall decide what further action is to be taken in the matter.]

13.

Uniform Accoutrements, etc.

(1)

A member of the Home Guard shall, while on duty, wear the following uniform:

Men. - (i) A full sleeved Khaki Cellular Shirt and Khaki Trousers for all members of the Home Guard:

Provided that the dress worn in the Nilgiris District shall be either those prescribed above or the items prescribed hereunder whichever be convenient for the season.

Khaki flannel full sleeved shirt and khaki serge trousers for all members and Great Coat and Water Proof coat and cover for all members of the Home Guard.

(ii)

Khaki beret,

(iii)

Brown leather shoes,

(iv)

Woolen socks,

(v)

Whistle with cord-blue for officers of and above the rank of Assistant Platoon Commander and whistle with chain for Home Guard

(vi)

[Cloth Belt (Khaki) with white metal buckle, and]

[G.O. 943, Home, dated 18th March 1965.]

(vii)

[Jersey woolen (in the Nilgiris district only) to be worn whenever necessary.]

[G.O. 2090, Home, dated 2nd July 1963.]

Women.-

(i)

Grey colour-handloom saree with orange colour border.

(ii)

Grey handloom blouse,

(iii)

White canvas shoes.

(iv)

White socks.

(2)

Members of the Home Guard shall wear the letter "Home Guard" on their shoulder straps and officers shall wear, in addition, badges of rank the State Government may by order specify.

(3)

All members of the Home Guard shall be supplied with two sets of uniform at Government cost on enrollment:

[Provided that in the Nilgiris district the two sets shall consist of cotton clothing (one set) and flannel and khaki serge clothing (one set) besides one woollen jersey, one great coat and one set of water proof coat and cover.]

[G. O. 4082, Home, dated 16th November 1965.]

[Replacement shall be at such intervals as the State Government may by order specify.]

[G. O. 943, Home, dated 18th March 1965.]

14.

[Allowance.

[G. O. 2377, Home, dated the 20th September 1985.]

- Every Home Guard shall be paid/allowed-

(a)

An allowance at the rate of Rs. 5 (Rupees five only) per day for the initial training for thirty days and for four callouts in a calendar month, either for duty or for training.

(b)

A duty allowance at the rate of Rs. 10 (Rupees ten only) per day for special callouts.

(c)

(i)

A pocket allowance at the rate of Rs. 3 (Rupees three only) per day while under-going training in training centers.

(ii)

Free board and lodging within a ceiling of Rs. 5 (Rupees five only) per day during training in camp.]

Form - "A"

[See Rule 3(2) of the Tamil Nadu Home Guard Rules, 1963]

Form of Application for Appointment to the Home Guard

(Each applicant is required to fill this form in duplicate)

Part-I {}

|-

| 1

| Name in full

| :

|-

| 2

| Address: (Residence)

| :

|-

|

| (Business)

| :

|-

| 3

| Telephone Number

| :

|-

|

| (Residence)

| :

|-

|
| (Business)
:
4
Date of Birth
:
-
5
Place of Birth
:
-
6
Occupation or profession and monthly income
:
-
7
Educational or special qualification such as
knowledge of foreign language or stenography or typing
:
-
8
Particulars of war service or military or naval
training or training with any First-Aid or Ambulance Corps
:
-
9
Father's Name
:
-
10
Father's Occupation or profession
:
-
11
If originally a resident of Pakistan, the
address in the country and the date of migration to the Indian
Union
:
-
12
Particulars of places where you have resided for
more than one year during the preceding five years.
:
-
Period of residence
-
From To

|
|-
|

| (Residential address in full (i.e.)

|
|-
|

| Village police state and district or house No./
Lane/Street and Road.)

|
|-
| 13

| Do you held an arms licence? If so give
description of the weapon

:
14

| Have you received any training in the use of
firearms?

:
15

| Do you own a motor vehicle ?

:

| If so give the description

|
|-
| 16

| Have you ever been convicted by a Court of any
offence? If the answer is "Yes" the full particulars
of the conviction and sentence should be given

| :
|}

I hereby declare that the particulars furnished in the application are to the best of my knowledge and belief, true and correct.

Place:Date:

Signature of the applicant

Part 2 ? Declaration to be Signed by the Applicant

I declare that I am a citizen of India and that I desire to be enrolled as a member of the Home Guard and have no intention of permanently leaving the limits of the State of Tamil Nadu for at least three years after enrollment and that I am not under any obligation to serve in any other force.

I understand that,-

(1)

In any emergency, I shall be liable to be called out on duty at any time and for any period,

(2)

I shall be liable to undergo training and attend parades in accordance with the orders of my superior officers.

(3)

I shall be required to take the following pledge namely:-

"I,....., Son of.....residing at.....do solemnly and sincerely declare and affirm

that I will well and truly serve the Government of Tamil Nadu as a Member of the Home Guard without favour or affection, malice or ill-will or communal or political bias; and that I will, to the best of my ability, cause peace to be kept and preserved and prevent all offences against person and property and that I will, to the best of my skill and knowledge, discharge all the duties as such member, faithfully according to law and will not allow any communal or political bias to interfere with the duties assigned to me by the State Government or my superior officers.

(4)

I shall be required to serve in the Home Guard for such period as may be required under Rule 6 of the Tamil Nadu Home Guard Rules, 1963.

Place:Date:

Signature of the applicant

Part 3 ? Certificates of character signed by two gentlemen of position who have known you personally for at least three years:

1. Certified that.....

.....

Date:

(Signature of person whogives the certificate)Designation:Address:Telephone No.:

2. Certified that.....

Date:

(Signature of person whogives the certificate)

Designation:Address:Telephone No.:

Part 4 ? Certificate to be Signed by the Employer or Superior Officer.

I certify that I shall have no objection to attending the training on week days and that I shall release him for duty in an emergency at any time, and for such period as may be required under Rule 6 of the Tamil Nadu Home Guard Rules, 1963.

Signature of employer or Superior Officer.

Full Address: Designation:Telephone No., if any:

Office:

Notes. - (a) If you are a Government or any employee in a local authority, a firm, or any other office, you should send this form through your superior officer, with his certificate that he has no objection to your attending the training and that he will release you for duty in an emergency at any time and for any period.

(b)

After completing the form in you should post it/or deliver it to the Commissioner of Police, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Superintendent of Police district. You will receive intimation in due course whether your services can be utilized.

Form-B

(See Rule 4 of the Tamil Nadu Home Guard Rules 1963)

Pledge of Service

I,....., son of.....residing at.....do solemnly and sincerely declare and affirm that I will well and truly serve the Government of Tamil Nadu as a member of the Home Guard without favour or affection, malice or ill-will, or communal or political bias; and that I will, to the best of my ability, cause peace to be kept and preserved, and prevent all offences against person and property, and that I will, to the best of my skill and knowledge, discharge all the duties as such member, faithfully, according to law and will not allow any communal or political bias to interfere with the duties assigned to me by the State Government or my superior officer.

Taken in presence of

Place:Date:

(Signature)

Form-C

(See rule 5 of the Tamil Nadu Home Guard Rules, 1963)

Certificate of Appointment as a Member of the Home Guard

No.:District:

Thiru.....has been appointed as a member of the Home Guard under section 4 of the Tamil Nadu

Home Guard Act, 1963 (Tamil Nadu Act 3 of 1963).

Signature:Designation:

Place:Date:

(Seal)

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